SUPERIOR COURT OF CALIFORNIA
COUNTY OF SACRAMENTO

26WM000028: NEWANFORBI vs MACOMBER
05/29/2026 Hearing on Petition for Writ of Mandate in Department 13A

Tentative Ruling

Consistent with Local Rule 1.06(B), a party requesting oral argument must telephone the Court and all other parties, and/or must email the Court (dept13A@saccourt.ca.gov) and all other parties, by 4:00 p.m. the court day before the hearing. If no party telephones and/or emails the Court and the other parties by 4:00 p.m. the court day before the hearing, no hearing will be held, and the tentative ruling shall become the Court's order and statement of decision.

If a hearing is requested, counsel are encouraged to appear remotely through the Zoom Application. Counsel may join the Zoom session by video through the following link:

https://saccourt-ca-gov.zoomgov.com/j/16180485362

Counsel may join the Zoom session by audio through the following telephone number / ID:

(833) 568-8864 / 161 8048 5362

The Zoom Application will not be available to any other interested parties or the general public. Interested parties and the general public are, however, encouraged to attend in person in Department 13A, which will be open to the public.

Parties requesting the services of a court reporter will need to arrange for private court reporter services at their own expense, pursuant to Government Code section 68086 and California Rules of Court, rule (CRC) 2.956. Requirements for requesting a court reporter are listed in the Policy for Official Reporter Pro Tempore available on the Sacramento Superior Court website at https://www.saccourt.ca.gov/court-reporters/docs/crtrp-6a.pdf. Parties may contact Court-Approved Official Reporters Pro Tempore by utilizing the list of Court Approved Official Reporters Pro Tempore available at https://www.saccourt.ca.gov/court-reporters/docs/crtrp-13.Pdf

A Stipulation and Appointment of Official Reporter Pro Tempore (Form CV/E-206) is required to be signed by each party, the private court reporter, and the judge prior to the hearing, if not using a reporter from the Court's Approved Official Reporter Pro Tempore list. Once the form is signed, it must be filed with the clerk.

See further instructions and information at the end of this tentative ruling. **

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The Demurrer of Respondent Jeffery Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR) is SUSTAINED WITHOUT LEAVE TO AMEND.

CDCR's Request for Judicial Notice is GRANTED.

I. Background

In 2018, Petitioner was convicted of violating Penal Code sections[1] 220, subdivision (a)(1) and 289, subdivision (a)(1)(A) (assault with intent to commit rape, and sexual penetration by force). (Request for Judicial Notice, Exh. 1.) Petitioner was released on parole on December 2, 2020. (First Amended Petition (FAP), p. 3, ¶11.)

On or about December 11, 2025, CDCR issued CDCR Form 1502-DR, entitled "Discharge Review Report." (FAP, Exh. A., p. 1.) The Discharge Review Report states "[b]ased on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), [Petitioner] is not eligible for EDC at this time due to having a 10-year parole term." (FAP, Exh. A, p. 4.)

Generally, Petitioner claims that this language in the Discharge Review Report and application of Amended Policy 19-03 violates Penal Code section 3008's mandate to conduct an individualized parole determination for sex offenders and corresponding regulation, 15 Cal. Code Regs., § 3574 (Regulation 3574). Petitioner alleges that despite the fact that he served approximately five years of parole, has "low risk scores," a stable residence, and has substantially complied with parole terms, CDCR "mechanically" applied a time-based bar, and an "impossible-to-satisfy" treatment completion standard. (FAP, p. 2, ¶1, p. 7, ¶38.)

Petitioner filed a petition for writ of mandate to among other things, set aside CDCR's Discharge Review Report, and compel Respondent, Secretary of CDCR, to conduct an individualized parole discharge determination.

CDCR demurred to the Petition.

II. Discussion

a. Standard of Review

A petition for writ of mandate is subject to a demurrer on the same grounds as a civil complaint. (Code Civ. Proc., § 1109; *Hilton v. Board of Supervisors of Santa Barbara County* (1970) 7 Cal.App.3d 708, 713.) In reviewing a demurrer, the trial court considers the properly pleaded material facts, and matters that may be judicially noticed, and tests their sufficiency. (*Cedar Fair, L.P. v. County of Santa Clara* (2011) 194 Cal.App.4th 1150, 1158-1159.)

A demurrer is properly sustained without leave to amend when there is no reasonable possibility that the defects in the complaint may be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Alliance for the Protec. of the Auburn Cmty. Envt. v. County of Placer* (2013)

215 Cal.App.4th 25, 29.) The burden of proving such reasonable possibility of amendment rests with the plaintiff. (*Blank v. Kirwan*, *supra*, 39 Cal.3d at p. 318.)

b. Petitioner Should Have Raised His Challenges in a Petition for Writ of Habeas Corpus

A petition for writ of habeas corpus may be filed by an individual who is in CDCR's actual or constructive custody. "As a prisoner upon parole, petitioner is constructively a prisoner under sentence in the legal custody and under the control of [CDCR]." (*Ex Parte Bandmann* (1958) 51 Cal.2d 388, 396-397.) Because Petitioner is on parole, he is in constructive custody of CDCR and may file a petition for writ of habeas corpus. A petition for writ of habeas corpus "is the preferred method by which to challenge circumstances or actions declared unconstitutional after the defendant's conviction became final." (*People v. Picklesimer* (2010) 48 Cal.4th 330, 339-340.) Courts have long addressed parolees' challenges to their parole-discharge decisions in petitions for writs of habeas corpus. (*See e.g.*, *In re Lira* (2014) 58 Cal.4th 573; *In re Wilson* (1981) 30 Cal.3d 438; *In re Chaudhary* (2009) 172 Cal.App.4th 32.)

Petitioner is challenging CDCR's decision to retain him on parole. Accordingly, he should have raised this parole discharge challenge in a petition for writ of habeas corpus.

Petitioner argues that a petition for writ of mandate is proper, because the cases cited by CDCR pertain to discrete individualized disputes, rather than "systemic *ultra vires* challenges to a statewide agency policy." (Opposition, p. 13:25.) This is of no moment. A petition for writ of habeas corpus is properly used to adjudicate claims regarding CDCR's implementation of purportedly unlawful regulations or policies. (*In re Febbo* (2020) 52 Cal.App.5th 1088 [habeas corpus petition challenging CDCR regulations promulgated to implement Proposition 57 to make nonviolent sex offenders ineligible for early parole consideration]; *In re Gadlin* (2019) 31 Cal.App.5th 784 [habeas corpus petition used to challenge inmate's exclusion from early parole consideration based on CDCR regulations implementing Proposition 57].)

Petitioner contends that a remedy by way of a writ of habeas corpus is "inadequate" because he is also requesting a declaration stating that individuals similarly situated to him are not subject to CDCR Amended Policy 19-03, and entitled to the protections of Regulation 3754. Petitioner claims that courts reviewing a petition for writ of habeas corpus cannot "naturally provide prospective equitable relief against systemic policies." (Opposition, p. 11:2.) This is incorrect.

Courts considering petitions for writ of habeas corpus may dispose of the petition "as the justice of the case may require." (*In re Crow* (1971) 4 Cal.3d 613, 619.) This broad authority includes the authority to declare the rights of the petitioner and other similarly situated persons, and to provide injunctive relief. (*In re Walters* (1975) 15 Cal.3d 738, 744; *In re Faucette* (1967) 253 Cal.App.2d 338, 343 [noting that "habeas corpus is an appropriate method of seeking declaratory and injunctive relief"].)

Thus, as Petitioner is in custody and challenging his confinement, he should have filed a petition for writ of habeas corpus.

c. Even Construing the Petition as One for Writ of Mandate, Petitioner Fails to Demonstrate the Existence of a Duty

Although it is not required to, the Court may exercise its discretion to treat the petition as one for writ of mandate. (*In re Steier* (2007) 152 Cal.App.4th 63, 83; *Gray v. Superior Court* (2005) 125 Cal.App.4th 629, 636, fn.3.) It does so here.

"Treating a habeas corpus petition on appeal as one seeking a writ of mandate is particularly appropriate where an allegation is made of an act committed in excess of jurisdiction—here, unlawfully requiring respondent to register as a sex offender—the issue presented is purely legal in nature, and there is no need for an evidentiary hearing permitted by the procedures governing habeas corpus petitions." (*In re Steier, supra*, 152 Cal.App.4th at p. 83; *Gray v. Superior Court*, *supra*, 125 Cal.App.4th at 636, fn.3.)

The issue presented in this proceeding—whether Section 3008 requires an individualized assessment for Petitioner and bars application of CDCR Amended Policy 19-03—is purely legal, and there is no need for an evidentiary hearing.

Accordingly, the Court exercises its discretion to treat the Petition as a petition for writ of mandate.

d. Petitioner Cannot Demonstrate that a Duty Exists

A petitioner may seek a writ of mandate to compel a public agency to perform acts required by law. (*Santa Clara County Counsel Attys. Assn. v. Woodside* (1994) 7 Cal.4th 525, 539.) "The two requirements for mandamus thus are (1) a clear, present and usually ministerial duty on the part of the respondent, and (2) a clear, present and beneficial right in the petitioner to performance of that duty." (*Keyes v. Bowen* (2010) 189 Cal.App.4th 647, 657 [citation omitted].)

Petitioner cannot show the existence of the duty that he claims exists—namely that CDCR must follow the mandates of Section 3008 and its implementing regulations.

Petitioner argues that Section 3008 and Regulation 3574 require an individualized parole assessment and specific procedures to be carried out when making such assessments. However, this is not the end of the Court's inquiry.

In determining whether a duty exists, the Court must look to the other statutes in the Penal Code, and harmonize Section 3008 with these statutes.

"When [this Court] interpret[s] a statute, '[its] fundamental task ... is to determine the

Legislature's intent so as to effectuate the law's purpose." (*People v. Reynoza* (2024) 15 Cal.4th 982, 989.) "[The Court] consider[s] first the words of a statute, as the most reliable indicator of legislative intent. [Citation.] In doing so, [the Court] give[s] the words their usual and ordinary meaning, viewed in the context of the statute as a whole. [Citation.] As part of this process, [every] statute should be construed with reference to the whole system of law of which it is a part so that all may be harmonized and have effect. [Citation.]" (*Lucky Chances, Inc., v. California State Gambling Control Comm'n* (2024) 106 Cal.App.5th 172, 179 [citations and quotations omitted].)

The Court assigns "significance to every word, phrase, sentence, and part of an act in pursuance of the legislative purpose…. [Citations.] The Court avoid[s] an interpretation that renders any portion of the statute superfluous, unnecessary, or a nullity; this is so because [it] presume[s] that the Legislature does not engage in idle acts. [Citations.]" (*Teachers' Ret. Bd. v. Genest* (2007) 154 Cal.App.4th 1012, 1028 [citations omitted].)

The Court looks to "the entire substance of the statute … in order to determine the scope and purpose of the provision….That is, [the court] construe[s] the words in question in context, keeping in mind the nature and obvious purpose of the statute… [The Court] must harmonize 'the various parts of a statutory enactment … by considering the particular clause or section in the context of the statutory framework as a whole. [Citations.' [The Court must] also avoid a construction that would produce absurd consequences, which [it] presume[s] the Legislature did not intend." (*In re Greg F.* (2012) 55 Cal.4th 393, 396 [citations and quotations omitted].)

Section 3008 requires an offender to "successfully complete a sex offender management program," the length of which shall be "determined by the certified sex offender management professional in consultation with the parole officer and [] approved by the court." (Pen. Code, § 3008, subd. (d)(2).)

However, Section 3000, subdivision (b)(2)(B) requires that persons convicted of particular offenses serve a mandatory 10-year parole term. (Pen. Code, § 3000, subd. (b)(2)(B) ["any inmate sentenced for an offense specified in paragraph (3), (4), (5), (6), (11) or (18) of paragraph (c) of Section 667.5 shall be released on parole for a period of 10 years…"].)

Petitioner was convicted of violating Sections 220, subdivision (a)(1) and 289, subdivision (a)(1)(A) in 2018. (Request for Judicial Notice, Exh. 1.) These offenses appear in subdivision (c) of Section 667.5. Accordingly, Petitioner was convicted of offenses that require him to serve a 10-year parole term. (Pen. Code, § 3000, subd. (b)(2)(B).) Petitioner began serving his parole term in 2020. He has not completed a 10-year parole term.

In its reply papers, CDCR argues that Section 3001 also does not allow parole discharge reviews for offenders serving a 10-year parole term based on sexually violent felony convictions. (Reply, p. 5:19-20.) This is an argument that CDCR could have, but chose not to, raise in its opening

brief, depriving Petitioner of the opportunity to respond. Accordingly, the Court does not address it. (*Reichardt v. Hoffman* (1997) 52 Cal.App.4th 754, 764 [refusing to consider new arguments in reply brief]; *Neighbours v. Buzz Oates Enterprises* (1990) 217 Cal.App.3d 325, 335, fn. 8; *see also Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [generally new evidence not permitted with reply papers based on principle that opposing party deprived of opportunity to respond].)

However, given the existence of Sections 3000 and 3001, it is unclear why CDCR appeared to undertake parole discharge review and issue the Discharge Review Report. Indeed, CDCR never explained why it has done so in its briefing, even after Petitioner noted that CDCR's actions were inconsistent with its assertion that it was without authority to conduct parole review for Petitioner. As noted above, the Discharge Review Report states "[b]ased on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), [Petitioner] is not eligible for EDC at this time due to having a 10-year parole term." (FAP, Exh. A, p. 4.) While the Court agrees that Petitioner is in fact not eligible for EDC because he has a 10-year parole term, it is not clear why CDCR undertook the early parole review process in the first place, and/or why CDCR refuses to provide any explanation for this course of conduct.

Regardless of CDCR's actions, CDCR had no duty to follow Section 3008 and its implementing regulations in this case. The Court reaches this conclusion by reading Sections 3000 and 3008 together. The Court concludes that the Legislature did not intend to create a duty upon CDCR to follow the procedures set forth in Section 3008 here—e.g., conduct an individualized parole determination—if it also enacted a statute providing that offenders such as Petitioner must serve a 10-year parole term. Construing Section 3008 in a manner that imposes a duty upon CDCR to follow Section 3008 would create an absurd result, as Section 3000 requires that Petitioner serve a 10-year parole term. (*In re Greg F. supra*, 55 Cal.4th at p. 412.)

As Petitioner cannot demonstrate the existence of a duty, he cannot state facts establishing a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) There is no reasonable possibility that he can amend the petition to overcome this defect. Petitioner is required by law to serve 10 years of parole. Petitioner has not served 10 years. Petitioner cannot show that CDCR nonetheless has a duty to conduct an individualized parole assessment or otherwise follow Section 3008.

The demurrer is sustained without leave to amend.

III. Disposition

The demurrer is sustained without leave to amend.

Pursuant to 3.1312, counsel for Respondent shall prepare a formal order (incorporating this ruling as an exhibit to the order) and a judgment of dismissal, and thereafter submit them to the Court for signature and entry. The judgment must contain the language required by Local Rule 2.15.

** Parties appearing remotely through Zoom are encouraged to use headsets. Experience has shown that the use of headsets improves sound quality.

Technological issues sometimes arise during hearings conducted remotely. Most such issues are quickly resolved. Any party having trouble informing the Court about a technological problem during oral argument should immediately telephone or email the Department 13A Clerk, who will relay the information to the judge. The Department 13A Clerk may be reached at (916) 874-5682 and dept13A@saccourt.ca.gov.**

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[1] Unless otherwise specified, all statutory references shall be to the Penal Code.